

DATE: May 28, 2026

DELIVERY: VIA USPS CERTIFIED MAIL (Tracking # [REDACTED] 41)

TO:

Clerk of the Board / Legal Department
Local Initiative Health Authority for Los Angeles County (d.b.a. L.A. Care Health Plan)
1200 West 7th Street
Los Angeles, CA 90017

SUBJECT: FORMAL GOVERNMENT CLAIM FOR DAMAGES

(Pursuant to California Government Code Section 910 et seq.)

1. Name and Address of Claimant:

Nicolas Hernandez

[REDACTED]

[REDACTED] CA 9 [REDACTED]

2. Address to Which Notices Are to Be Sent:

Nicolas Hernandez

[REDACTED]

[REDACTED] CA 9 [REDACTED]

3. Date, Place, and Other Circumstances of the Occurrence:

On March 27, 2026, a formal reimbursement claim was legally submitted to the DHCS Conlan Center, pursuant to standard state protocols. DHCS properly processed and directed this claim to L.A. Care Health Plan for adjudication. Pursuant to Assembly Bill 3275 (effective Jan 1, 2026), L.A. Care was legally mandated to pay, contest, or deny this state-directed claim within 30 calendar days (April 26, 2026). L.A. Care failed to act within this statutory window. On May 4, 2026, L.A. Care documented its own statutory default in the State ACMS portal (Exhibit A). Furthermore, L.A. Care has consistently failed to provide mandated Non-Medical Transportation (NMT) for pharmacy access, forcing out-of-pocket expenditures to maintain clinical continuity.

4. General Description of the Indebtedness, Obligation, Injury, Damage, or Loss:

L.A. Care Health Plan has committed a statutory default by failing to execute a direct mandate from the Department of Health Care Services to adjudicate a legitimate medical reimbursement claim within the 30-day mandate of AB 3275. This administrative negligence operates as a “denial by operation of law,” causing the claimant direct financial loss in out-of-pocket medical expenses, transportation costs for pharmacy access, and economic losses resulting from the necessity of litigation (Case 26AVSC00192) to attempt to compel statutory compliance. This debt constitutes a liability arising from L.A. Care’s failure to provide contractually and statutorily mandated coverage and access to care.

5. Name(s) of the Public Employee(s) Causing the Injury, Damage, or Loss:

This claim arises from the collective statutory default of the following individuals and delegated agents:

- **Martha Santana-Chin (CEO, L.A. Care):** Ultimate accountability for the health plan's failure to maintain statutory compliance with AB 3275 and for the maintenance of inaccurate directory data (HSC 1367.27).
- **Augustavia Haydel (General Counsel, L.A. Care):** Responsible for the legal department's failure to resolve the documented default and for overseeing the administrative loop that obstructed claimant's remedies.
- **Bill Seldeen (Counsel, L.A. Care):** Responsible for coordinating the health plan's defensive posture and failure to execute mandatory administrative duties.
- **Call-the-Car, Inc. (Delegated Transportation Vendor):** The contractor responsible for the systemic failure to provide mandated Non-Medical Transportation (NMT).
- **Richard Borden (Director of Compliance, Call-the-Car, Inc.):** Responsible for the vendor’s failure to adhere to service level standards.

6. Amount Claimed and Basis of Computation:

The total amount claimed is **\$3,522.13**, qualifying this matter for Small Claims jurisdiction. The basis of computation is detailed in Exhibit C: Itemized Damages Ledger, attached hereto.

Total Claim Amount: \$3,522.13 + Applicable Statutory Penalties.

(Note: Full itemized receipts and supporting documentation are available for inspection upon request or during evidentiary proceedings of litigation if necessary).

DECLARATION:

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. I demand payment of the total amount within 45 days of the receipt of this claim, as mandated by the California Government Claims Act, prior to the filing of a formal civil action in Los Angeles Superior Court.



Date: May 28, 2026

Signature: Nicolas Hernandez

Enclosures (Exhibits):

Exhibit A: ACMS Portal Entry (Admission of missed April 26 deadline)

Exhibit B: USPS Certified Mail Receipt for the March 27 submission of DHCS 4521 claim

Exhibit C: Itemized Damages Ledger

EXHIBIT C: ITEMIZED DAMAGES LEDGER**Claimant:** Nicolas Hernandez**Entity:** Local Initiative Health Authority for Los Angeles County (L.A. Care Health Plan)

Date of Service*	Description	Amount
03/27/2026	Principal Debt (DHCS 4521 Stalled Claim)	\$2,307.00
03/28/2026 - present	Out-of-Pocket Medical Visit: [REDACTED]	\$395.00
03/28/2026 - present	Out-of-Pocket Medical Visit: [REDACTED]	\$297.00
03/31/2026 - present	Pharmacy Transportation (Total Out-of-Pocket Uber/Lyft)	\$116.73
04/17/2026 - 05/01/2026	Case 26AVSC00192 Filing & Service Fees	\$406.40
TOTAL		\$3,522.13

*Note: Medical service dates reflect the documentation currently provided by the medical group. Any minor administrative date discrepancies within provider superbills are noted for the record and will be reconciled upon request or during evidentiary proceedings of litigation if necessary.